

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

March 8, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Ms. Case and Mr. Collins. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Spiker moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on February 22, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on March 1, 2010. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Upon inquiry, City Treasurer Barb Dorr provided information available for vouchers payable to Willis of Wyo., Inc. (\$100.00), notary bond policies (\$50/ea), and VISA/UMB (\$1,111.31/\$1,402.31), NAARSO carnival ride training expenses for building inspectors (reimbursed by Cheyenne Frontier Days). Motion carried. Voting "yes" – all members of the governing body present.

"Ordinance creating Chapter 8.68, Vacant and Abandoned Residential Structures, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming." Reporting for Finance Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. It was noted the substitute amends Section 8.68.040 B. by changing "7 days" to "7 business days". Motion to amend carried. Voting "yes" – all members of the governing body present. Mr. Spiker moved to amend the substitute, as amended, by a replacement substitute (dated by City Attorney as March 8, 2010), seconded by Mr. Valdez. Upon inquiry, City Attorney Dan White explained the changes contained in the substitute, referencing Section 8.68.020, Definitions, Subsection 4. with regard to connection to utilities or services and definition of "abandoned"; Section 8.68.110 pertaining to structure registration and property owner duty to comply with the International Property Maintenance Code, and insertion of Section 3. providing for a sunset clause indicating the ordinance shall remain in effect from May 1, 2010 until August 1, 2011 with a report requirement from the Chief Building Official to the governing body prior to August 1, 2011 to determine ordinance effectiveness. Motion to amend the

substitute, as amended, by replacement substitute carried. Voting “yes” – all members of the governing body present. Mr. Pierson moved to amend Section 3. (sunset clause) by changing the date of August 1, 2011 to November 1, 2011, seconded by Mr. Spiker. He noted the proposed date change would provide more time for acquiring information to determine ordinance effectiveness. Comments followed in support of the amendment. Motion to amend Section 3. carried. Voting “yes” – all members of the governing body present. Dr. Rinne moved to amend Section 8.68.020 by striking Subsection 4. c. which references the City’s water supply system. Following brief comments, Dr. Rinne withdrew the motion. Upon inquiry regarding enforcement of the ordinance, Matt Ashby, Planning Services Director, advised upon approval of the ordinance a preliminary process will be developed regarding structure registration and enforcement procedures involving the Chief Building Official with assistance from the Nuisance Code Enforcement Officer. Main motion as amended by substitute (three amendments) carried. Voting “yes” – all members of the governing body present. (#3884)

“An Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in the SW¼ NW¼ of Section 21, T. 14N., R.66W., of the 6th P.M., Laramie County, Wyoming (located south of Plain View Road, west of Point Bluff, and north of Apache Street). Reporting for Public Services Committee, Ms. Ash moved to approve on second reading, seconded by Dr. Rinne. Ms. Ash moved to amend by substitute, seconded by Mr. Brown. Upon inquiry, City Attorney Dan White explained the substitute corrects erroneous language that indicated an official plat was on file. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present.

“An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City map of the Cheyenne City Code, by changing the zoning classification from MR-1 Medium Density Residential Established District to PUD Planned Unit Development District for Lot 1, Original City Block 140, Refinement A, Cheyenne, Wyoming (located at the northwest corner of the intersection of E. 24th Street and Warren Avenue)” -- referred to Public Services Committee (sponsor - Ms. Ash).

“An Ordinance amending a portion of the City of Cheyenne’s Sanitation Fee Schedule to add monthly recycle dumpster service fees for apartments, multiplex dwellings, trailer courts and optional commercial container service fees” -- referred to Finance Committee (sponsors - Mr. Brown and Ms. Broyles).

“An Ordinance amending Chapter 5.12, Alcoholic Beverages, Section 5.12.060, Sales and Consumption - Restrictions, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code pertaining to the David R. Romero South Cheyenne Community Park” -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] “Resolution re-appropriating the Fiscal Year 2010 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and §16-4-113.” Motion (per Consent Agenda) carried. (#5187)

[CA] “Resolution designating the Cheyenne Animal Shelter, 800 Southwest Drive, Cheyenne, Wyoming, as an official animal shelter and animal control facility pursuant to Section 6.20.010 of the Code of the City of Cheyenne.” Motion (per Consent Agenda) carried. (#5188)

[CA] “Resolution to amend the City of Cheyenne Annual Action Plan for Fiscal Year 2009-2010 and reallocate funding for three Community Development Block Grant (CDBG) Projects” -- referred to Finance Committee (sponsors - Mr. Brown, Ms. Broyles).

[CA] “A Resolution approving the City of Cheyenne’s Analysis of Impediments to Fair Housing Choice prepared by the Housing and Community Development Office” -- referred to Public Services Committee (sponsors - Mr. Brown, Ms. Broyles).

[CA] “A Resolution Amending Resolution No. 5183 authorizing the Mayor to offer financial incentives to induce certain eligible employees to retire from city service during Fiscal Year 2009-2010” -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] “A Resolution authorizing the Mayor to offer retirement financial incentives to members of the bargaining unit of Cheyenne Firefighters Local Union No. 279, International Association of Firefighters” -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] “A Resolution authorizing the City of Cheyenne, Wyoming, to lease, with an option to purchase, certain equipment for the Sanitation, Recycling and Landfill Divisions” -- referred to Finance Committee (sponsors - Mr. Brown, Ms. Broyles).

[CA] “A Resolution approving Temporary Water Service, by User’s Agreement, between the City of Cheyenne, Board of Public Utilities, and Suncor Energy USA Pipeline Company” -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] “A Resolution repealing Resolution No. 4378; creating a new Resolution establishing fees and damage/cleaning deposits for use of the City of Cheyenne/Kiwanis Community House” -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] “A Resolution establishing fees and damage/cleaning deposits for use of the Community Center, located at David R. Romero South Cheyenne Community Park” -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] “A Resolution repealing Resolution No. 4888 and creating a new Resolution establishing fees for use of rental shelters in the following parks: Holliday Park, Lions Park, Mylar Park, Sun Valley Park and Pointe Park” -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] Lease Agreement between the City of Cheyenne, acting by and through its Board of Public Utilities (BOPU), and Swan Ranch Development for Swan Ranch Development to construct and to donate to BOPU a private water and sanitary sewer system that runs through the Swan Ranch Rail Park. Motion (per Consent Agenda) carried. (#5520)

[CA] Memorandum of Understanding between the City of Cheyenne, acting by and through its Board of Public Utilities (BOPU), and Cheyenne Frontier Days, to outline responsibilities for the operation and maintenance of the sanitary waste station at Lake Absaraca. Motion (per Consent Agenda) carried. (#5521)

[CA] Consideration of FAA Grant No. 3-56-0005-45 between the City of Cheyenne, County of Laramie, and the Cheyenne Regional Airport Board for the Rehabilitation of Taxiways A3 and B2. Motion (per Consent Agenda) carried. (#5522)

[CA] Memorandum of Understanding between the City of Cheyenne, and Cheyenne Frontier Days, to outline responsibilities during the 2010 Cheyenne Frontier Days celebration (Lake Absaracca and Lions Park areas) -- referred to Finance Committee.

[CA] Grant Agreement between the Wyoming Business Council, Business and Industry Division, State Energy Office, and the City of Cheyenne, to provide State Energy Office - American Recovery and Reinvestment Act (ARRA) funds to the City of Cheyenne -- referred to Finance Committee.

[CA] Amendment No. 4 to State Lease Agreement No. 8-09466 between the City of Cheyenne and State of Wyoming for parking spaces in the Cox Parking Facility. Motion (per Consent Agenda) carried. (#5523)

[CA] Contract Modification No. 2 to Contract No. 5045 between the City of Cheyenne and J-R Engineering, LLC for design of the 2009 Cheyenne Transit Program Bus Stop Upgrades Project (Federal Transit Authority/American Reinvestment and Recovery Act) -- referred to Finance Committee.

Renewal of existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill license, or microbrewery or winery permit) filed with the City Clerk's Office: Wigwam, Inc. d/b/a Redwood Lounge and Package Liquor, retail, 2105 E. Lincolnway; Cheyenne Vail Investments, Inc. d/b/a Gus & Jon's Crown Bar, retail, 222 West Lincolnway; Poor Richard's d/b/a Poor Richard's, retail, 2233 E. Lincolnway; W.W. Enterprises, Inc. d/b/a Les' Lamp Lounge and Drive-In Liquor, retail, 101 W. 6th St.; The Blue Bird, Inc. d/b/a Uncle Charlie's, retail, 6001 Yellowstone Road; Langhoff Enterprises d/b/a Two Bar Bowl, retail, 740 Carlson; Cheyenne OTB, LLC d/b/a Wyoming OTB, retail, 3307 Nationway; Fraternal Order of Eagles Aerie #128, ltd. retail, 1600 Thomes Ave.; B.P.O. Elks #660, ltd. retail, 100 E. 17th St.; Cheyenne 28, LLC d/b/a C.B. & Potts Rest., retail, 1650 Dell Range Blvd.; KEG, Inc. d/b/a D.T.'s Liquor Mart & Tusker Bar, retail, 3310 Ridge Road; JKLL, Inc. d/b/a The Drunken Skunk, retail, 1617 Capitol Ave.; Twin Dragon Chinese Rest., Inc. d/b/a Twin Dragon, rest., 1809 Carey Avenue; South Side Bar, Inc. d/b/a Keg 'n Kork Liquors, retail, 822 Central Ave.; Rande's Ritz, LLC d/b/a Midtown Tavern, retail, 1303 E. Pershing Blvd.; Cheyenne Country Club, ltd. retail, 800 Stinner Road; F & G Corp. d/b/a The Green Door, retail, 301 E. Lincolnway; ENI, Inc. d/b/a Eagle's Nest, retail, 1101 W. Lincolnway; Outback Steakhouse of Florida, LLC d/b/a Outback Steakhouse, retail, 1626 Fleischli Parkway; Bedrock Seafood, Inc. d/b/a Mayflower Rest., retail, 112 W. 17th St.; Four Winds, Inc. d/b/a Four Winds, retail, 1103 E. Pershing; EKG, Inc. d/b/a D.T.'s Package Liquor and Lounge, retail, 2121 E. Lincolnway; Alf in Wyoming Enterprise, LLC d/b/a Alf's Pub and Package Liquor, retail, 1622 E. 19th St.; Flatland Investments, LLC d/b/a Godfather's Pizza, rest., 5719 Yellowstone Road; Francis E. Self Post #6 d/b/a The American Legion Post #6, ltd. retail, 2001 E. Lincolnway; Primos Cheyenne d/b/a Scotty's Pizza Factory, rest., 1802 Dell Range; F.E. Warren Post #1881 d/b/a V.F.W. Post #1881, ltd. retail, 2816 E. 7th St.; Knights of Columbus Council #801 d/b/a Casey's Club, ltd. retail, 507 W. 28th St.; Blanne Enterprises, Inc. d/b/a Cool River Wine & Spirits, retail, 5225 Yellowstone Rd.; Mantiff Cheyenne Hospitality, LLC d/b/a Hitching Post Inn, retail, 1600 W. Lincolnway; Airport Golf Club, Inc., ltd. retail, 4801 Central Ave.; Qiu Wei Sheng d/b/a Golden House Chinese Rest., rest., 1651 Carey Ave., #8; Katrina M. and Adam L. Howell d/b/a Scooter's Scoreboard Bar, retail, 507 E. Lincolnway; Cloud 9, Inc. d/b/a Cloud 9 Rest. and Lounge, retail, 300 E. 8th Ave.; Texas Roadhouse of Cheyenne, LLC d/b/a Texas Roadhouse, retail, 1931 Bluegrass Circle; HEJE, Inc. d/b/a Outlaw Liquors, retail, 4503 Western Way; KZ Corporation d/b/a Goofy's Tavern, retail, 2801 E. Lincolnway; Stillwater, Inc. d/b/a Mingles, retail, 1618 Stillwater Ave.; Prairie View Golf Club, ltd. retail, 3600 Windmill Road; Albany, Inc. d/b/a Albany Rest., Bar and Liquormart, retail, 1506 Capitol Ave.; Mehn, Inc. d/b/a Casa De Trujillo, rest., 122 W. 6th St.; S&W

Properties, LLC d/b/a Vinos Wine and Spirits, retail, 453 Vandehei Ave., #190; The Plains Hotel Co., LLC d/b/a The Plains Hotel, resort, 1600 Central Ave.; Real Mexican Foods, Inc. d/b/a Los Amigos Rest., rest., 620 Central Ave.; Avanti, Inc. d/b/a Dell Range Liquor, retail, 3806 Dell Range Blvd., Suite 4; Pizza Hut on Yellowstone, Inc, rest., 5320 Yellowstone Rd.; Hotel West I, LP d/b/a Holiday Inn Cheyenne, resort, 204 W. Fox Farm Rd.; AMVETS Post #10, ltd. retail, 3839 E. Lincolnway; Moreno & Reyes, LLC d/b/a Guadalajara Family Mexican Rest., rest., 1745 Dell Range Blvd.; Pizza Hut of Cheyenne d/b/a Pizza Hut/Wing Street, rest., 4503 Western Way; Bighorn Associates, LC d/b/a Chili's Southwest Grill and Bar, retail, 1320 Dell Range Blvd.; Appaloosa Enterprises, LLC d/b/a Sanford's Grub & Pub, retail, 115 E. 17th St.; Wild West Apple Ventures d/b/a Applebee's Neighborhood Grill and Bar, retail, 1401 Dell Range Blvd.; Delilah R. Pineda d/b/a Estevan's Cafe, rest., 1820 Ridge Road; GMRI, Inc. d/b/a Red Lobster #639, retail, 1923 Dell Range Blvd.; Dynasty Café, Inc. d/b/a Dynasty Cafe, rest., 600 W. 19th St.; Mondello Corporation d/b/a L'Osteria Mondello, rest., 1507 Stillwater; China Buffet, Inc. d/b/a China Buffet, rest., 1958 Dell Range Blvd.; RGLM, Inc. d/b/a Avanti Italian Rest., rest., 4620 Grandview Ave.; Shadows Brewing Co., LLC d/b/a Shadows Pub & Grill, rest., 115 W. 15th St., #1; Jose Luis Gomez-Salcedo d/b/a Los 3 Caballos, rest., 1907 E. Lincolnway; Nagle-Warren Mansion, LLC d/b/a Nagle-Warren Mansion LLC, rest., 222 East 17th St.; OC Cheyenne, LLC d/b/a Old Chicago Rest., retail, 1734 Meadowland Dr.; Sandra J. Inniss d/b/a 2 Doors Down, rest., 118 E. 17th St.; Iron Chefs, Inc. d/b/a Tokyo Bowl, rest., 1829 Dell Range Blvd.; Jerry P. Innis d/b/a Pizzeria Venti, rest., 112 E. 17th St.; Shadows Brewing Co., LLC d/b/a Shadows Pub & Grill, microbrewery, 115 W. 15th St.; Suite 1901, CLLC d/b/a The Winery at 1901, winery, 1901 Central Ave.; OG of Cheyenne, Inc. d/b/a The Olive Garden Italian Rest., bar & grill, 1536 Dell Range Blvd.; Moreno and Aguilar, LLC d/b/a Hacienda Guadalajara, bar & grill, 317 E. Lincolnway; O'Jackson's, Inc. d/b/a Jackson's All American Sports Bar & Grill, bar & grill, 1121 Old Town Lane; WYOMEX II, Inc. d/b/a On The Border, bar & grill, address not issued (located on Meadowland Dr. across from Old Chicago); Suite 1901, CLLC d/b/a Suite 1901, bar & grill, 1901 Central Ave. City Clerk Carol Intlekofer offered a suggestion that in lieu of reading the list of liquor license renewals for the 2010-2011 term, as shown on the meeting agenda, the listing itself be recorded in its entirety in the official minutes of the meeting, together with any motions and votes. She noted, pursuant to state statute requirements, publication of the notice of renewal applications and posting of notices on respective licensee premises have been achieved and the holding of a public hearing before the governing body has been conducted. She further stated that the City Attorney has advised that this statement on the record provides sufficient documentation to identify those individual renewal applications that may be acted upon at the meeting. Upon query by Mayor Kaysen to members of the governing body, there was no objection voiced to recognize the renewal applicants as listed on the agenda in lieu of the Clerk reading the individual applicants. Mr. Brown moved to approve the renewal applicants, seconded by Mr. Valdez. Mr. Brown moved to divide the question to allow for a separate vote on the renewal application filed by Sandra J. Inniss d/b/a 2 Doors Down, seconded by Mr. Valdez. Motion to divide the question carried. Voting "yes" – all members of the governing body present. Mr. Brown moved to approve the renewal application filed by Sandra J. Inniss d/b/a 2 Doors Down, seconded by Mr. Valdez. Mr. Spiker declared a conflict of interest (business interest) and vacated Council Chambers. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers. Mr. Brown moved to divide the question to allow for a separate vote on those renewal applicants who received 2 or more failures during the Police Department's last 2 compliance checks and also for the renewal application for Bedrock Seafood, Inc. d/b/a Mayflower Restaurant, seconded by Mr. Pierson. Motion to divide the question carried. Voting "yes" – all members of the governing body present. Mr. Brown moved to approve the renewal applications as divided in the previous motion that carried, seconded by Mr. Spiker. Mr. Brown stated that following discussion and conclusion of last week's Finance Committee meeting, information had been received from Capt. Schulz, Police

Dept., that there were no renewal applicants that received 2 or more failures during the last 2 compliance checks, therefore, the Mayflower Restaurant renewal application was the only one involved in the motion on the floor. John Parker, owner of Mayflower Restaurant, reviewed the current status (minor remodeling, new management, re-opening lounge only without food services at this time) and future plans involving restaurant operations. Comments followed in support of renewing the license, disturbances and calls for police services, compliance checks, and past management concerns. Upon inquiry, Police Chief Brian Kozak reviewed department records research concerning the number of calls for service and reporting parties. Comment was made referencing a statement made by an applicant representative when the retail liquor license was before City Council to approve a transfer of ownership to the current licensee (re: utilization of a bar and grill liquor license instead of a retail liquor license). Mr. Parker advised the statement was made by a previous representative, who was no longer with the business, and clarified the facility does need a full retail liquor license to operate as a lounge environment without restaurant (food) services. Motion to approve the renewal application for Bedrock Seafood, Inc. d/b/a Mayflower Restaurant carried. Voting "yes" – all members of the governing body present. Comments followed regarding the need to continue promotion of police compliance checks and TIPS (alcohol server and employee) training. Main motion to approve remaining renewal applications (en masse) carried. Voting "yes" – all members of the governing body present.

Announcement was made of a Public Hearing to be held March 22, 2010 at 6:00 p.m. in City Council Chambers for a restaurant liquor license application filed with the City Clerk's Office for Maria Ramos d/b/a El Charrito Mexican Grill, 216 E 17th Street, Cheyenne, WY.

Announcement was made of a Public Meeting to be held March 22, 2010 at 6:00 p.m. in City Council Chambers for the purpose of amending Resolution No. 4859 pertaining to 2007-2010 Optional One Percent Sales Tax Funding due to a projected shortfall in collections.

Announcement was made of the Appointment of Lane Pilbin to the International Fire Code Board of Appeals; Terry Livingston to the Greenway Advisory Committee; Cindy Pomeroy to the Police Civil Service Commission; and Rita Watson and Rick Schum to the Personnel Commission, to be confirmed March 22, 2010.

Under other City business:

Joe Elkins, Better Check Cab, local business owner, commended the Mayor and City Council members on the recent hiring of Police Chief Brian Kozak, and expressed concerns with other public transport taxicab companies operating in violation of state law, also referencing City Code provisions, and lack of violation enforcement, which would provide revenue to the City to assist with its financial situation. Mayor Kaysen advised a new ordinance is in draft form regarding public transport companies.

Mike Langhoff questioned guidelines for tournament-style poker events and enforcement of games he believed to be illegal, referencing advertising flyers he had acquired regarding upcoming poker events. Comments followed regarding games being conducted that are not following the City's recently enacted ordinance. Upon inquiry, City Clerk Carol Intlekofer clarified one permit had been issued since the ordinance went into effect and when individuals apply for a tournament-style poker event permit in addition to the application form, they are also given a copy of the ordinance and affiliated administrative guidelines. Comments continued on the administrative

guidelines. Upon inquiry, City Attorney Dan White advised he would proceed with adopting the administrative guidelines under provisions of the Wyoming Administrative Procedure Act and would communicate with Police Kozak to discuss the means of distribution of information to those who may be affected.

Mr. Valdez commented on complaints he had received regarding pot holes throughout town. Upon inquiry, Jim Elias, Public Works Director, advised the formation of pot holes are an on-going problem, exacerbated this winter by freezing/thawing conditions. He requested citizens report pot holes requiring repair through the on-line (City's website) Request Partner reporting system or by phoning the hot line number at 637-6263. Mayor Kaysen commented that only a cold mix temporary repair can be utilized during winter months and when warmer weather arrives a more lasting patch can be applied, and expressed appreciation to the public for their patience.

Mayor Kaysen recognized youth members of the community in attendance at the meeting.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:08 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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